

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JARED KOON,

Plaintiff,

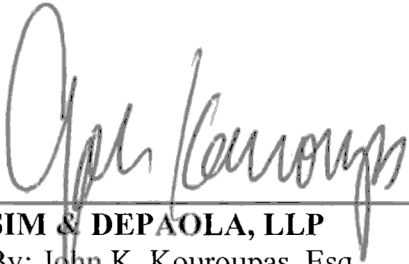
-against-

CITY OF NEW YORK, QUEENS MOTOR CARS LLC,
D/B/A NORTHSTAR MITSUBISHI, ROBERT XERRI,
JOHN XERRI, JEREMY AMINOLROAYA, ANTHONY
CAPORALE, individually and in their official capacities
as New York City police officers, RACHEL DAVIDOV,
VINCENT CERRETA and JOHN DOES 1-10,Defendants.
-----X

Index No.:

Plaintiff designates
Bronx County as the place of trialThe basis of the venue is where the
tort arose and where Plaintiff resides**SUMMONS**Plaintiff resides at:
2532 Wilson Ave.
Bronx, NY 10469**TO THE ABOVE-NAMED DEFENDANT:**

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
October 9, 2019
SIM & DEPAOLA, LLP
By: John K. Kouroupas, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard, Suite 201
Bayside, New York 11361
T: (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

QUEENS MOTOR CARS LLC D/B/A NORTHSTAR MITSUBISHI
46-05 Northern Blvd
Long Island City, NY 11101

ROBERT XERRI
46-05 Northern Blvd
Long Island City, NY 11101

JOHN XERRI
46-05 Northern Blvd
Long Island City, NY 11101

JEREMY AMINOLROAYA
46-05 Northern Blvd
Long Island City, NY 11101

ANTHONY CAPORALE
46-05 Northern Blvd
Long Island City, NY 11101

VINCENT CERRETA
PATROL BOROUGH QUEENS NORTH SPECIALIZED UNIT
68-40 AUSTIN STREET
FOREST HILLS, NEW YORK, 11375

RACHEL DAVIDOV
114TH PRECINCT
34-16 ASTORIA BLVD S, ASTORIA, NY 11103

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JARED KOON,VERIFIED COMPLAINT

Index No.

Plaintiff,

-against-

CITY OF NEW YORK, QUEENS MOTOR CARS LLC,
D/B/A NORTHSTAR MITSUBISHI, ROBERT XERRI,
JOHN XERRI, JEREMY AMINOLROAYA, ANTHONY
CAPORALE, individually and in their official capacities
as New York City police officers, RACHEL DAVIDOV,
VINCENT CERRETA and JOHN DOES 1-10,Defendants.
-----X

Plaintiff, Jared Koon, by his attorneys, Sim & DePaola, LLP, for his complaint against the above Defendants, City of New York, Queens Motor Cars LLC D/B/A Northstar Mitsubishi, Robert Xerri, Rachel Davidov, Vincent Cerreta and John or Jane Does 1-10, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief through 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988 for the violations of his civil rights protected by Constitution of the United States and the Constitution and laws of the State of New York.
2. Plaintiff's claims arise from a July 11, 2018 incident, in which Defendants, acting under color of state law, unlawfully searched, seized, assaulted and battered Mr. Koon. As a result, Mr. Koon suffered serious physical, emotional and psychological injuries.
3. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

4. Plaintiff, Jared Koon (“Mr. Koon”), is an African-American or Black male individual, who presently resides in the County of Bronx, City and State of New York.
5. Defendant, City of New York (“City”), is a municipal corporation organized under the laws of the State of New York.
6. At all times relevant hereto, Defendant City, acting through the New York City Police Department (“NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
7. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
8. Defendant, Queens Motor Cars LLC D/B/A Northstar Mitsubishi (“Northstar”), is New York State domestic limited liability company, formed on October 4, 2016, with a principal place of business located at 46-05 Northern Blvd, Long Island City, NY 11101, organized under the laws of New York State and duly licensed to operate in the County of Queens and the State of New York.
9. Defendant, Robert Xerri (“Mr. Xerri”), is a White male, who is the owner, principal, operator and managing member of defendant Northstar. His address or principal place of business is located at 46-05 Northern Blvd, Long Island City, NY 11101.

10. Defendant, John Xerri (“J. Xerri”), is a White male, who is the Director of Operations of defendant Northstar. His address or principal place of business is located at 46-05 Northern Blvd, Long Island City, NY 11101.
11. Defendant, Jeremy Aminolroaya (“Aminolroaya”), is a White or Hispanic male, who is the Used Car Manager of defendant Northstar. His address or principal place of business is located at 46-05 Northern Blvd, Long Island City, NY 11101.
12. Defendant, Anthony Caporale (“Caporale”), is a White male, who is the Finance Manager of defendant Northstar. His address or principal place of business is located at 46-05 Northern Blvd, Long Island City, NY 11101.
13. Defendant, Rachel Davidov (“Davidov”), was, at all times here relevant, a White female police officer or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Davidov was, at all times relevant herein, a police officer or detective, under Shield No. 4297, Tax Reg. No. 964470, at the 114th precinct, located at 34-16 Astoria Blvd S, Astoria, NY 11103. Defendant Davidov is being sued in her individual and official capacities.
14. Defendant, Vincent Cerreta (“Cerreta”), was, at all times here relevant, a White male police officer or detective employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Cerreta was, at all times relevant herein, a police officer or detective, under Shield No. 22824, Tax Reg. No. 952564, at Patrol Borough Queens North Specialized Unit, located at 68-40 Austin Street, Forest Hills, New York, 11375. Defendant Cerreta is being sued in his individual and official capacities.

15. At all times relevant Defendants, John Does 1 through 10, were White or Hispanic male police officers, detectives, supervisors, policymakers or officials employed by the NYPD, and assigned to the 114th NYPD Pct. on July 11, 2018, who responded to the Northstar Mitsubishi dealership, located at 46-05 Northern Blvd, in Queens County, between 5:00 p.m. and 6:00 p.m. At this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John Does 1 through 10, as such information is within the exclusive possession of the defendants.
16. At all times relevant herein, Defendants John Does 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John Does 1 through 10 are being sued in their individual and official capacities.
17. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
18. Within 90 of the claims herein, plaintiff timely serve a notice of claim, upon the City of New York.
19. Over 30 days have elapsed since the filing of this notice, and this matter has not been settled or otherwise disposed of.
20. Plaintiff has complied with municipal defendant's request for an oral examination, pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
21. This action and associated claims have been timely commenced within all applicable statutes of limitations.

FACTUAL CHARGES

22. On, or about, July 8, 2018, Mr. Koon was driving his newly purchased or leased along a public roadway, County of Bronx, City and New York, when the vehicle unexpectedly and suddenly started to severely malfunction.
23. On July 11, 2018, between the hours of 4:15 p.m. and 6:15 p.m., Mr. Koon was lawfully inside of Northstar Mitsubishi automotive dealership, located at 46-05 Northern Boulevard, County of Queens, City and State of New York.
24. Northstar is the fictitious or D/B/A identity of defendant, Queens Motor Cars LLC, an active New York State domestic limited liability company, based in Queens County, whose principal member and owner is defendant Robert Xerri, with defendants J. Xerri, Aminolroaya and Caporale each participating in and contributing to the policies, conduct and overall management of Northstar.
25. At said date, time and location, Mr. Koon was in the process of negotiating the terms of a refund that he was lawfully due from defendant Northstar, in relation to the 2017 Nissan Altima he had recently leased or financed.
26. On July 11, 2018, Mr. Koon informed defendant Northstar, in the persons of Jon Musson, Robert Xerri, J. Xerri, Aminolroaya and Caporale, that said vehicle was experiencing significant and dangerous malfunctions that rendered it unable to drive safely or effectively, namely malfunctions that caused the vehicle to move in reverse, while it was in drive, in addition to myriad other malfunctions and mechanical problems.
27. Mr. Koon had previously paid defendant Northstar \$2,500.00, cash, in consideration for the vehicle.

28. Defendants Northstar, Xerri, J. Xerri, Aminolroaya and Caporale, as well as their employee, Mr. Jon Musson, therefore, intentionally and falsely misrepresented the condition of the of the subject vehicle, so that Mr. Koon would agree to purchase or lease said vehicle.
29. Defendants Northstar, Xerri, J. Xerri, Aminolroaya and Caporale, as well as their employee, Mr. Jon Musson, intentionally misled Mr. Koon by deliberately and fraudulently misrepresenting the vehicle's condition as "mint," that the vehicle has never experienced any mechanical, functional or operable malfunctions, issues or problems and that there were no known mechanical, operable or functional issues or concerns presently known to defendants.
30. In reliance upon defendants' fraudulent misrepresentations, including the vehicle's alleged pristine or "mint" operating and mechanical condition and defendants' promise to permit Mr. Koon to return said vehicle for an immediate cash refund within thirty (30) of the original transaction, Mr. Koon agreed to pay defendants \$2,500.00, in cash, prior to assuming possession of said vehicle from defendants.
31. On July 11, 2018, Mr. Koon was in possession of the vehicle for less than seven (7) days.
32. For the brief period of time that Mr. Koon possessed the vehicle, the vehicle was not a participant in any collisions or accidents or subjected to any extreme conditions or operator use, especially none that would cause said malfunctions or mechanical issues.
33. The agreement between Mr. Koon and defendants Northstar, Xerri, J. Xerri, Aminolroaya and Caporale, specifically provided that Mr. Koon was entitled to return the vehicle to defendant Northstar, in exchange for a full and complete refund of any monies paid to

defendant Northstar by Mr. Koon, provided the vehicle was returned within thirty (30) days of the date Mr. Koon assumed possession of said vehicle.

34. Said agreement further provided that any refund would be paid to Mr. Koon in the exact same form, manner and fashion as Mr. Koon's original payment was conveyed to defendant Northstar, i.e., a cash payment by Mr. Koon would entitle him to a cash refund.
35. Said agreement further provided that Mr. Koon was permitted to return the vehicle within thirty (30) days, unconditionally or "no questions asked."
36. On July 11, 2018, at approximately 4:15 p.m., Mr. Koon arrived at defendant Northstar's dealership.
37. Mr. Koon informed defendants Northstar and Xerri of the serious and deleterious mechanical problems with the subject vehicle.
38. Defendants Northstar and Xerri then performed an inspection or other mechanical services test.
39. Upon the completion of said inspection or testing, which curiously and tellingly required less than ten (10) minutes, defendants falsely reported to Mr. Koon that the vehicle was in perfect operating condition.
40. Mr. Koon rightfully discredited the alleged inspection or testing performed by defendants and demanded either a full and complete cash refund, as promised, or a suitable replacement vehicle.
41. As defendants and Mr. Koon were unable to agree on a suitable replacement vehicle, Mr. Koon demanded that he be issued a cash refund, in the amount of \$2,500.00, as previously agreed upon.

42. Defendants Northstar, Xerri, J. Xerri, Aminolroaya and Caporale initially refused, spuriously claiming that Mr. Koon was not entitled to a refund, only to have the subject vehicle repaired.
43. Defendants Northstar, Xerri J. Xerri, Aminolroaya and Caporale have engaged in a pattern and practice of false, deceptive and fraudulent advertising intended to induce the consuming public to patronize defendants' business, such as falsely promising full refunds identical to the method of payment and the consumer's ability to return a vehicle within 30 days for any reason or no reason whatsoever.
44. Reluctantly, defendants agree to issue Mr. Koon a full refund for the sum of \$2,500.00.
45. Defendants, however, informed Mr. Koon that the money would be transferred to his bank account within four (4) to five (5) business days, which was clearly in violation of the terms of the agreement that provided for an immediate cash refund.
46. Mr. Koon informed defendants Northstar, Xerri J. Xerri, Aminolroaya and Caporale that he needed the money to be refunded presently, because of his immediate and pressing need to purchase another vehicle for his employment.
47. Mr. Koon's employment at the time required his possession of an operable motor vehicle, rendering the four (4) to five (5) day refund conveyance period woefully unacceptable, inadequate and contrary to the plain terms of the contractual agreement.
48. Mr. Koon and defendants continued arguing over the terms of the contractual agreement to no avail.
49. As a direct or proximate result of defendants,' Northstar's, Xerri's, J. Xerri's, Aminolroaya's and Caporale's, intentionally deceptive, unfair and fraudulent business

practices, as well as their breaches of contract, Mr. Koon was caused to sustain significant monetary loss and emotional distress.

50. During the dispute, which never turned violent or threatening, defendant Xerri J. Xerri, Aminolroaya, Caporale or an employee of defendants, reported Mr. Koon to the police.
51. As Mr. Koon was a paying customer, who was rightfully owed a cash refund, he was lawfully within the above stated premises, while it remained open for business to the general public.
52. On the date in question, Northstar remained open to the general public, until 9:00 p.m.
53. Defendants Northstar, Xerri, J. Xerri, Aminolroaya and Caporale, instead of settling the business dispute in a reasonable manner, falsely reported to the NYPD that Mr. Koon was trespassing.
54. Defendants Northstar, Xerri, J. Xerri, Aminolroaya and Caporale, nor any of their employees, ever asked Mr. Koon to leave the premises.
55. Mr. Koon never refused any request, whatsoever, to leave the premises.
56. Defendants Northstar, Xerri, J. Xerri, Aminolroaya and Caporale falsely reported Mr. Koon to the NYPD, solely due to Mr. Koon's status as a Black male.
57. Defendants Northstar, Xerri, J. Xerri, Aminolroaya and Caporale deeply resented the fact that Mr. Koon, an African-American or Black male, who they had mistakenly figured to be an easy target due his color, race or ethnicity, had unraveled their fraudulent and deceptive scheme.
58. Defendants Northstar, Xerri, J. Xerri, Aminolroaya and Caporale reported Mr. Koon to the NYPD, a paying customer, because of their racially motivated desires to inflict harm

- upon Mr. Koon, in the form of his arrest and physical removal from the premises, because of his status as a Black or African-American male individual.
59. Defendants' malevolent and racist intentions to inflict harm upon Mr. Koon may be surmised due to their deliberately planned strategy to keep Mr. Koon inside of the store, until the arrival of police, including defendants Davidov and Cerreta.
60. Northstar, Xerri, J. Xerri, Aminolroaya and Caporale never requested Mr. Koon to leave the store, because they intended to have Mr. Koon falsely arrested and physically removed from their premises in retribution for his vitiation of defendants preconceived notions regarding African-American men as easy targets for deceptive and fraudulent business practices.
61. Northstar, Xerri, J. Xerri, Aminolroaya and Caporale falsely reported Mr. Koon to the NYPD, because of their impermissibly discriminatory beliefs and inclinations, namely that a Black man, such as Mr. Koon, should be punished for frustrating their underhanded, fraudulent and deceptive designs and that any responding NYPD officers would immediately credit defendants' version of events over Mr. Koon's, due solely Mr. Koon's status as a Black or African-American male and defendant Xerri's, J. Xerri's and Caporae's statuses as White males.
62. Defendants Northstar, Xerri, J. Xerri, Aminolroaya and Caporale called the police to have Mr. Koon removed from Northstar and arrested, because defendants harbor prejudicial and discriminatory feelings toward Black or African-American men, such as Mr. Koon.
63. Upon information and belief, defendants have dealt with many customers attempting to argue or dispute the terms of a contract, agreement or material representation, but have

reported such instances if Black or African- American men, such as Mr. Koon, are involved.

64. At said date, time and location, defendants, including Davidov and Cerreta, approached Mr. Koon, without a lawful reason to do so, as he was committing no crime or violation of the law.
65. Mr. Koon informed defendants, including Davidov and Cerreta, of the business dispute, that he was paying customer, and was lawfully within said premises.
66. Defendants Northstar and Xerri confirmed Mr. Koon's statements.
67. Despite said confirmation, defendants Davidov and Cerreta proceeded to unlawfully order Mr. Koon to vacate premises.
68. Mr. Koon had a legitimate reason to be at said location, as Northstar had recently leased a motor vehicle to him.
69. Mr. Koon was enjoying his civil right to be within said premises, which was an establishment open to public accommodation.
70. Mr. Koon did not commit any crimes or violations of the law, as he was merely negotiating the terms of a potential refund and was lawfully within said premises due to his ongoing business relationship and transaction with Northstar.
71. Defendants, including Davidov and Cerreta, continued to illegally order Mr. Koon to leave said location, without probable cause or any justification and due solely to Mr. Koon's status as a Black or African-American male.
72. Due to Mr. Koon's status a Black or African-American male, defendants Davidov and Cerreta impermissibly attributed criminal wrongdoing to Mr. Koon, despite clear evidence that he was lawfully within said premises.

73. After Mr. Koon informed defendants, including Davidov and Cerreta, of his right to be within the premises, defendants became irate.
74. Shortly thereafter, approximately ten (10) additional NYPD White or Hispanic male officers arrived at the scene, John Does 1-10.
75. Defendants, including Davidov, Cerreta, and five (5) White male officers, believed to be John Does 1-5, then suddenly and without provocation, committed various assaults and batteries to plaintiff's person, with each defendant grabbing Mr. Koon by his wrists and his right leg.
76. Defendants, including Davidov, Cerreta, and John or Jane Doe 1-5, then each violently lifted Mr. Koon up and proceeded to slam him onto the ground, causing Mr. Koon's face to violently impact the ground.
77. Due to Defendants' unprovoked actions, Mr. Koon sustained serious physical injuries, including multiple contusions, lacerations, a fractured teeth and serious lacerations to his nose, all in violation of his civil rights to engage in protected speech or activities, be free from excessive force, and to enjoy the equal protection of the laws.
78. Defendants, including Davidov, Cerreta and John Does 1-5, then arrested Mr. Koon without any probable cause to do so, as Mr. Koon had not committed any crimes or violations of the law.
79. Defendants, including Davidov and Cerreta, never possessed a legally issued arrest warrant for plaintiff's arrest.
80. To justify the excessive force used against Mr. Koon, Defendants, including Davidov and Cerreta, wrongfully alleged that Mr. Koon flailed his arms and clenched his fists in an

attempt to avoid being handcuffed and placed under arrest, all of which is completely untrue and a complete fabrication.

81. Defendants, including Davidov and Cerreta, knowingly and intentionally alleged that Mr. Koon committed the above referenced criminal acts with the full knowledge that said acts did not occur.
82. Defendants, including Davidov and Cerreta, falsely accused Mr. Koon of said acts to justify an otherwise unlawful arrest, assault and battery.
83. Mr. Koon was then put in a police van and transported to 114th NYPD Precinct.
84. After being put in said van, Mr. Koon requested for medical treatment multiple times, with all the requests being ignored by the defendants, including Davidov and Cerreta.
85. Defendants, including Davidov and Cerreta, then intentionally provided the above false information to the Queens County District Attorney's Office, so that a criminal prosecution would be initiated against Mr. Koon.
86. Defendant Davidov was Mr. Koon's arresting officer and signed his criminal court complaint, knowingly and falsely accusing Mr. Koon of Resisting Arrest and Trespass, all of which defendant Davidov knew to be untrue.
87. Mr. Koon was arraigned and formally charged with one (1) count of Resisting Arrest and one (1) count of Trespass.
88. After his arraignment, Mr. Koon was released and went to Montefiore Medical Center for medical treatment for the injuries caused by defendants, including Davidov, Cerreta and John Does 1-5.
89. Plaintiff was incarcerated for approximately two (2) days or approximately twenty- four (24) hours until he was released on or about July 12, 2018.

90. Defendants, including Davidov and Cerreta, failed to disclose, misrepresented and provided false material details regarding the presence of probable cause to the District Attorney's Office, namely that Mr. Koon trespassed and resisted arrest.
91. At no point did the Defendants, including defendants Davidov and Cerreta, ever observe Mr. Koon commit any crime or offense.
92. At no point were the defendants, including defendants Davidov and Cerreta, ever told by any witnesses that Mr. Koon committed any crime or violation of the law.
93. During all of the events described, the defendants, including Davidov and Cerreta, acted maliciously and with intent to injure Plaintiff.
94. Upon information and belief, the said dealership was equipped with video surveillance that will corroborate Mr. Koon's version of events.
95. The defendants, including Davidov, Cerreta and John Does 1-5,, had no reasonable suspicion or probable cause to inquire, stop, question, assault, batter, arrest or detain Mr. Koon, as refusing an unlawful order to vacate and negotiating a refund from a dealership are protected activities under the United States Constitution and the laws of the State of New York.
96. Defendants, including defendants Davidov and Cerreta, subverted the legal process by arresting and detaining Mr. Koon in order to retaliate against him for refusing an unlawful command by defendant Davidov to leave the said dealership, when he was committing no crimes or violations of the law.
97. Defendants, including Davidov and Cerreta, further subverted the legal process by causing a criminal prosecution to be initiated against Mr. Koon in a transparent attempt to

conceal defendants' own illegal, tortious and reprehensible behavior, namely defendants' unlawful inquiry, arrest, detention, assault and battery of Mr. Koon.

98. Defendants have displayed a pattern and practice of fabricating false observations.
99. Mr. Koon asserts that Defendants, including Davidov and Cerreta, illegally stopped him, battered him and then falsely arrested him, due solely to their racial, ethnic, gender, or socio-economic discriminatory prejudices, their desire to meet an arrest quota and to benefit from increased overtime compensation.
100. Mr. Koon further asserts that Defendants, including Davidov and Cerreta, acted in such an unlawfully reprehensible manner, due to their assumption that defendants' version of events would undoubtedly and unduly be credited over Mr. Koon's, solely because Mr. Koon is a black male.
101. Defendants, including Davidov and Cerreta, battered, arrested and prosecuted Plaintiff, not because of any probable cause to belief that Plaintiff had committed any crimes or violations of the law, but because Plaintiff is a black male and impermissibly attribute criminal activity to black males, such as plaintiff.
102. Defendants, including Davidov and Cerreta, impermissibly concluded Mr. Koon was committing a crime or violation of the law, solely due to Mr. Koon's status as Black male.
103. Defendants, including Davidov and Cerreta, discriminated against Plaintiff by arresting, assaulting, battering, and prosecuting Plaintiff, solely due to defendants' perception or consideration of Plaintiff's race, ethnicity, national origin, immigration status, religion, gender, socio-economic status or age.

104. Defendants, including Davidov and Cerreta, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the unlawful stop, assaults, batteries, seizure, arrest, and prosecution against plaintiff.
105. Defendants, including Davidov and Cerreta, possessed no valid reason to order plaintiff to leave the premises or to assault, batter or arrest plaintiff, which gives rise to the strong inference that the unlawful acts committed by Defendants, including Davidov, Cerreta and John Does 1-5, against Plaintiff were discriminatorily motivated and enacted upon.
106. Defendants, including Davidov and Cerreta, subjected plaintiff to disparate treatment compared to other individuals similarly situated, because defendants did not stop or assault any white individuals, who were acting in the same manner as plaintiff at the times referenced herein, namely engaging in a negotiation for refund or other matter.
107. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's assault, battery, and subjection to excessive force.
108. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's injury and arrest without probable cause, due impermissible considerations such as race, color or ethnicity.
109. Plaintiff asserts that the defendants, including Davidov, Cerreta and John Does 1-5, who violated plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has

become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

110. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.
111. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses.
112. The following are various articles and reports detailing the magnitude and overwhelming prevalence of incidents, in which NYPD officers were caught lying, including instances that resulted in the arrest and imprisonment of innocent people. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

113. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.
114. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

115. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.
116. Other articles include: (i) “Testilying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.
117. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging

- that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.
118. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiff's arrest without probable cause.
119. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.
120. Defendants' actions, pursuant to plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.
121. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective

- policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of defendants, the NYPD and City of New York.
122. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.
123. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Davidov, Cerreta and John Does 1-5.
124. At all times relevant hereto, defendants, including Davidov and Cerreta, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others applying excessive force during Mr. Koon's arrest.

125. As a direct and proximate result of the acts of Davidov and Cerreta, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

First Amendment Retaliation Claim Under
New York State Law All Defendants

126. The above paragraphs are here incorporated by reference as though fully set forth.
127. Plaintiff engaged in speech and activities that were protected by the First Amendment to the United States Constitution and Article I, Section 8, of the New York State Constitution.
128. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.
129. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty, injury to his person and the initiation of criminal charges against him.
130. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or by chilling his desire to further participate or engage in such protected speech or activities.

131. Accordingly, plaintiff's right to engage in protected speech and activities, guaranteed and protected by the First Amendment to the United States Constitution and Article I, Section 8, of the New York State Constitution, were violated by defendants.
132. Defendants City and Northstar, as employers of the individual Defendants, are for their wrongdoings, under the doctrine of *respondeat superior*.
133. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
134. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

135. The above paragraphs are here incorporated by reference as though fully set forth.
136. Plaintiff engaged in speech and activities that were protected by the First Amendment to the United States Constitution and Article I, Section 8, of the New York State Constitution.
137. Defendants committed impermissible or unlawful actions against plaintiff that were motivated or substantially caused by plaintiff's constitutionally protected speech or activities.
138. Defendants' retaliatory actions against plaintiff resulted in the deprivation of his liberty, injury to his person and the initiation of criminal charges against him.
139. Defendants' retaliatory actions adversely affected plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech

or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

140. Accordingly, plaintiff's right to engage in protected speech and activities, guaranteed and protected by the First Amendment to the United States Constitution and Article I, Section 8, of the New York State Constitution, were violated by defendants.
141. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
142. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Unlawful Search and Seizure Under
New York State Law Against City and NYPD Defendants

143. The above paragraphs are here incorporated by reference as though fully set forth.
144. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.
145. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.
146. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.
147. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.
148. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

149. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
150. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
151. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

152. The above paragraphs are here incorporated by reference as though fully set forth.
153. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.
154. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.
155. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.
156. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.
157. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.
158. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
159. By reason of the above, the amount of damages sought on this cause of action exceeds the

jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law Against City and NYPD Defendants

- 160. The above paragraphs are here incorporated by reference as though fully set forth.
- 161. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.
- 162. Plaintiff was conscious of his confinement.
- 163. Plaintiff did not consent to his confinement.
- 164. Plaintiff's arrest and false imprisonment was not otherwise privileged.
- 165. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
- 166. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
- 167. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

- 168. The above paragraphs are here incorporated by reference as though fully set forth.
- 169. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
- 170. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

171. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
172. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Assault and Battery Under
New York State Law Against City and NYPD Defendants

173. The above paragraphs are here incorporated by reference as though fully set forth.
174. At all relevant times, Defendants caused Plaintiff to fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
175. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent or justification.
176. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.
177. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
178. As a direct and proximate result of this breach, Plaintiff sustained the damages hercinbefore alleged.
179. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

180. The above paragraphs are here incorporated by reference as though fully set forth.

181. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
182. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
183. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
184. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress
New York State Law Against All Defendants

185. The above paragraphs are here incorporated by reference as though fully set forth.
186. The conduct of Defendants was extreme and outrageous.
187. Defendants' extreme and outrageous conduct was perpetrated with the intent to cause, or with disregard to a substantial probability of causing, severe emotional distress to Plaintiff.
188. Defendants' extreme and outrageous conduct is causally related to Plaintiff's injuries.
189. Defendants' extreme and outrageous conduct caused Plaintiff to sustain extreme emotional distress.
190. Defendants City and Northstar, as employers of the individual Defendants, are responsible for their wrongdoing under the doctrine of *respondeat superior*.
191. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
192. By reason of the above, the amount of damages sought on this cause of action exceeds the

jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law Against All Defendants

193. The above paragraphs are here incorporated by reference as though fully set forth.
194. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
195. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
196. Defendants intended to inflict substantial harm upon Plaintiff.
197. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
198. Defendants City and Northstar, as employers of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
199. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
200. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

201. The above paragraphs are here incorporated by reference as though fully set forth.
202. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

203. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
204. Defendants intended to inflict substantial harm upon Plaintiff.
205. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
206. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
207. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
208. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law Against All Defendants

209. The above paragraphs are here incorporated by reference as though fully set forth.
210. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the New York County District Attorney's Office.
211. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement.
212. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Sixth Amendment to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

213. Defendants City and Northstar, as employers of the individual Defendants, are wrongdoing under the doctrine of *respondeat superior*.
214. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

215. The above paragraphs are here incorporated by reference as though fully set forth.
216. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the New York County District Attorney's Office.
217. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement.
218. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Sixth Amendment to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.
219. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
220. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law Against All Defendants

221. The above paragraphs are here incorporated by reference as though fully set forth.
222. Plaintiff is a White male.
223. Defendants intentionally discriminated against Plaintiff on the basis of his race, national origin, ethnicity, religion or sex.
224. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.
225. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as color, race, ethnicity, national origin, sex, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.
226. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.
227. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.
228. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.
229. Accordingly, defendants violated Plaintiff's Constitutionally protected rights, pursuant to the Fourteenth Amendment to the United States Constitution and Article I, Section 11, the New York State Constitution, as well as Article VII, Section 79-n, of the New York State Civil Rights Law.
230. Defendants City and Northstar, as employers of the individual Defendants, are wrongdoing under the doctrine of *respondeat superior*.
231. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
232. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against All Individual Defendants

233. The above paragraphs are here incorporated by reference as though fully set forth.
234. Plaintiff is a White male.
235. Defendants discriminated against Plaintiff on the basis of his color, race, national origin, ethnicity, religion or sex.
236. Defendants also selectively treated Plaintiff in comparison to others similarly situated.
237. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as color, race, ethnicity, national origin, religion, sex, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.
238. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.
239. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.
240. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.
241. Accordingly, defendants violated Plaintiff's Constitutionally protected rights, pursuant to the Fourteenth Amendment to the United States Constitution and Article I, Section 11, the New York State Constitution, as well as Article VII, Section 79-n, of the New York State Civil Rights Law.
242. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
243. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against All Individual Defendants

244. The above paragraphs are here incorporated by reference as though fully set forth.
245. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, to the equal protection of the laws, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.
246. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.
247. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.
248. Defendants' conspiracy was motivated by a desire to inhibit or punish Plaintiff for exercising his constitutional rights, or because of some racial, otherwise class-based, invidious or discriminatory animus.
249. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.
250. Accordingly, defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
251. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

252. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law Against City and NYPD Defendants

253. The above paragraphs are here incorporated by reference as though fully set forth.
254. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
255. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
256. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
257. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual NYPD Defendants

258. The above paragraphs are here incorporated by reference as though fully set forth.
259. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
260. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

261. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
262. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
263. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINETEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law Against Defendant City

264. The above paragraphs are here incorporated by reference as though fully set forth.
265. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.
266. Defendant City breached those duties of care.
267. Defendant City placed defendants in a position where they could inflict foreseeable harm.
268. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
269. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
270. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
271. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWENTIETH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

272. The above paragraphs are here incorporated by reference as though fully set forth.
273. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.
274. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.
275. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with defendant City's employees.
276. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.
277. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.
278. Defendant City's conduct violated Plaintiff's rights under the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

279. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

280. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWENTY-FIRST CAUSE OF ACTION

Unfair or Deceptive Business Practices Under
New York State Law Against All Northstar Defendants

281. The above paragraphs are here incorporated by reference as though fully set forth.

282. Defendants engaged in consumer-oriented conduct that was materially misleading.

283. Plaintiff suffered injuries as a result of defendants' deceptive acts or practice.

284. Accordingly, defendants violated New York General Business Law § 349

285. Defendant Northstar, as employers of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

286. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

287. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWENTY-SECOND CAUSE OF ACTION

Breach of Contract Under
New York State Law Against All Northstar Defendants

288. The above paragraphs are here incorporated by reference as though fully set forth.

289. Plaintiff and defendants entered into a valid and binding contractual agreement.

290. Plaintiff adequately performed all obligations, pursuant to said contractual agreement.

291. Defendants breached said contractual agreement.

292. Defendant Northstar, as employer of the individual defendants, is responsible for their wrongdoing, under the doctrine of *respondeat superior*.
293. As a direct and proximate result of defendants' breach, Plaintiff sustained the damages hereinbefore alleged.
294. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWENTY-THIRD CAUSE OF ACTION

Fraudulent Inducement of Contract Under
42 U.S.C. § 1983 Against All Northstar Defendants

295. The above paragraphs are here incorporated by reference as though fully set forth.
296. Defendants misrepresented material facts to plaintiff.
297. Defendants knowingly perpetrated such misrepresentations.
298. Plaintiff justifiably relied upon defendants' material misrepresentations to his detriment.
299. Defendant Northstar, as employer of the individual defendants, is responsible for their wrongdoing, under the doctrine of *respondeat superior*.
300. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
301. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

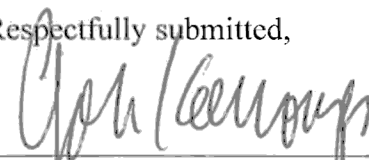
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- v) On the Twenty-Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- x) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- y) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988 and the New York Civil Rights Law;

Together with the costs and disbursements of this action.

Dated: October 9, 2019
Bayside, New York

Respectfully submitted,



SIM & DEPAOLA, LLP

By: John K. Kouroupas, Esq.

Attorneys for Plaintiff

4240 Bell Blvd, Ste 201

Bayside, NY 11361

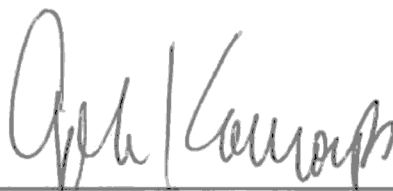
T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, John K. Kouroupas, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
October 9, 2019



JOHN K. KOUROUPAS, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JARED KOON,

Plaintiff,

-against-

CITY OF NEW YORK, QUEENS MOTOR CARS LLC, D/B/A NORTHSTAR MITSUBISHI,
ROBERT XERRI, JOHN XERRI, JEREMY AMINOLROAYA, ANTHONY CAPORALE,
individually and in their official capacities as New York City police officers, RACHEL
DAVIDOV, VINCENT CERRETA and JOHN DOES 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
By: JOHN K. KOUROUPAS
Attorneys for Plaintiff(s)
42-40 Bell Boulevard, Suite 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for